

2026 USPS election-mail litigation

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Status: **Draft v8** — prepared as background material for attorney review. **This document is NOT legal advice and does not assert that any specific countersuit is viable.** It summarizes public-record research only; whether any of it supports an actual claim is a legal judgment for counsel to make.

Prepared by: Ralph Burton Harris III.

Prepared for attorney review — attorney identity confirmed. This material is intended for review by **William K. “Bill” Kirk, President of Washington Gun Law** (Spokane, WA), who hosts the associated “Washington Gun Law” YouTube channel. Confirmed directly via his firm bio:¹

- 20-time recipient of Washington State’s Super Lawyer award (top 1% of attorneys in the state).
- Graduate of Washington State University and Gonzaga University School of Law.
- Former Spokane County and King County Prosecuting Attorney; in private practice defending the accused, including self-defense/lawful-use-of- firearm cases, since 2000.
- Has taught attorneys in trial practice in 26 states and lectures nationally on Second Amendment issues.

Earlier drafts of this report (v3–v4) carried an unresolved identity question, since the user’s initial description (“Kirk, who heads the 2nd Amendment Institute”) did not match either of the two “Kirk” candidates initially investigated: Second Amendment Institute (led by Tyler Yzaguirre, not a Kirk) and Cooper & Kirk, PLLC (Michael W. Kirk, a different attorney). The user then supplied the direct source link (washingtongunlaw.com) that resolved it. **Washington Gun Law / William K. Kirk is the confirmed, final match** — consistent with the user’s earlier context clue (“Washington state executives”), since Mr. Kirk practices in Washington State. See² for the full audit trail of ruled-out candidates.

Assessment note (not independently verified): Mr. Kirk’s credentials above come from his own firm’s bio page, not yet cross-checked against an independent source (e.g., the Washington State Bar Association’s public attorney lookup, or superlawyers.com’s own listing page). Nothing found in this research is a red flag, but independent confirmation of bar standing would be a reasonable step before relying on this report in front of him.

Correction note (v2): v1 of this report searched for “RNC Services, Inc.” and found no matches anywhere. The user subsequently clarified the intended name was **“DNC Services, Inc.,” a.k.a. the**

¹Attorney bio, William K. Kirk, Washington Gun Law: <https://www.washingtongunlaw.com/william-k-kirk-2> (retrieved 2026-09-30). Confirms: President of Washington Gun Law (Spokane, WA); host of the “Washington Gun Law” YouTube channel; 20-time Washington State Super Lawyer; J.D., Gonzaga University School of Law; B.A., Washington State University; former Spokane County and King County Prosecuting Attorney; in private practice since 2000.

²Two other “Kirk” candidates were investigated and ruled out before the correct match was found: (1) Second Amendment Institute (SAI), a D.C.-based 501(c)(3) founded 2016 — its founder/president is Tyler Yzaguirre, not Kirk, per SAI’s website, press releases, and attorneys of record in *Yzaguirre v. District of Columbia*, No. 1:24-cv-01828 (D.D.C.), retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=%22Yzaguirre%20v.%20District%20of%20Columbia%22&type=r&format=json>; (2) Cooper & Kirk, PLLC, a D.C. constitutional-litigation firm co-founded by Michael W. Kirk with a Second Amendment practice area (<https://www.cooperkirk.com/practice-areas/constitution-second-amendment/>) — a different person from William K. Kirk, and the firm is not called an “institute.”

Democratic National Committee. This version re-runs the relevant searches under the corrected name. The DNC’s actual, long-standing formal corporate name is “**DNC Services Corporation**” (not “DNC Services, Inc.”) — see Part 3a below.

Source documents. The complaint, related-case complaints, and the underlying Federal Register rule discussed below have been downloaded in full and are available locally in sources/, so this report and any future drafting do not depend on the documents remaining available online.

1. **Civil RICO** (18 U.S.C. §§ 1961–1968) lets a private plaintiff who was injured “in [their] business or property” by a pattern of racketeering activity sue for treble damages and attorney’s fees.³ It is a tort-like private right of action layered on top of what is usually thought of as a criminal statute.
2. **Qui tam suits** under the federal False Claims Act (31 U.S.C. §§ 3729–3733) are a structurally different tool: a private “relator” sues *on behalf of the government* over false claims for government money, the government can intervene and take over the case, and the relator keeps a statutory cut (15–30%) of any recovery.⁴ Civil RICO and qui tam are often confused because both let ordinary citizens act as private enforcers, but they protect different interests (private business/property vs. the public fisc) and pay out differently (treble damages to the plaintiff vs. a bounty share of a government recovery).
3. The most significant USPS-related case currently in the news is **State of California v. United States Postal Service**, D. Mass. No. 1:26-cv-13917, filed August 26, 2026, before Judge Indira Talwani.⁵ It is a multi-state challenge (California, Washington, and roughly two dozen other states, D.C., and several cities/counties) to USPS Board of Governors changes and mail-ballot handling ahead of the 2026 midterms. The Washington Attorney General’s Office is one of the filing offices.⁶ **This case is pled as an Administrative Procedure Act / Voting Rights Act matter (“441 Civil Rights: Voting”), not as a civil RICO or qui tam action** — nothing in the public docket metadata indicates RICO claims.⁷
4. The user’s corrected reference, “**DNC Services, Inc.,**” is the user’s name for the Democratic National Committee. The DNC’s actual, long-established formal corporate name — confirmed across multiple federal court dockets going back decades — is “**DNC Services Corporation,**” not “DNC Services, Inc.”⁸ However, **no connection between DNC Services Corporation, Washington state executives, and a racketeering (RICO) complaint tied to the 2026 USPS election-mail case could be found in**

³18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

⁴31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator’s share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

⁵CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

⁶CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

⁷Same CourtListener query as [^4]; suitNature field returned “441 Civil Rights: Voting”; cause field returned “28:2201 Constitutionality of State Statute(s)”. No RICO-specific nature-of-suit code (which would read “470 RICO”) was present in the retrieved metadata.

⁸CourtListener opinion search for “DNC Services Corporation”, queried via <https://www.courtlistener.com/api/rest/v4/search/?q=%22DNC+Services+Corporation%22&format=json>, returned 20 matches confirming this is the DNC’s long-used formal corporate name, e.g. *Wilson v. DNC Services Corporation*, No. 1:17-cv-00730 (D.D.C.): <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/>

CourtListener's national case-law/RECAP index or in Google News.⁹ DNC Services Corporation does not appear in the party list for *California v. USPS* (1:26-cv-13917) retrieved in this research pass.¹⁰ This is flagged explicitly under "Unverified items" rather than guessed at.

5. Because of the gaps in (4), this document is organized as: a clean explainer of civil RICO vs. qui tam (usable regardless of the specific case), what is actually confirmed about the 2026 USPS case, and a short list of concrete next steps to close the remaining gaps.

⁹CourtListener searches for "DNC Services, Inc", "DNC Services Corporation", and "DNC Services Corporation" "Washington" racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for "DNC Services Corporation" + "Washington" was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for "DNC Services" RICO Washington and "Democratic National Committee" racketeering lawsuit 2026 returned no matching results.

¹⁰CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

Confidence assessment

Claim	Confidence	Basis
Civil RICO elements, remedies, statute of limitations	High	Direct statutory text and well-settled case law ¹¹
Qui tam / FCA mechanics	High	Direct statutory text ¹²
Existence, docket number, filing date, judge, and parties of <i>California v. USPS</i>	High	CourtListener RECAP metadata, pulled directly from the docket record ¹³¹⁴
That case is voting-rights/APA, not RICO	High (confirmed)	Full 53-page complaint retrieved and read; pleads seven causes of action (separation of powers, APA, three ultra vires theories, Voting Rights Act, Privacy Act) — no RICO or FCA count, and the DNC is not a party in any capacity ¹⁵
The DNC’s formal legal name is “DNC Services Corporation”	High	Confirmed across multiple federal court captions (e.g., <i>Wilson v. DNC Services Corporation</i> , D.D.C.) ¹⁶
DNC Services Corporation’s connection to Washington state executives / a RICO complaint / the 2026 USPS case	Unverified	No hits in CourtListener full-text RECAP/opinion search or Google News combining these terms ¹⁷
Whether a <i>separate</i> , smaller state-court RICO or qui tam suit naming the DNC exists	Unknown	State trial court filings (including Washington Superior Courts) are generally not indexed by CourtListener/PACER and were not searched by state-specific tools in this pass

¹¹18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

¹²31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator’s share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

¹³CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

¹⁴CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

¹⁵Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/>

Key assumptions made: (1) I assumed “RICCO” in the original query was a misspelling of “RICO” (the Racketeer Influenced and Corrupt Organizations Act), based on the user’s own follow-up clarification (“racketeering and criminal activity”). (2) Per the user’s correction, “RNC Services, Inc.” in v1 was a misstatement of “**DNC Services, Inc.**”, meaning the Democratic National Committee. If either assumption is wrong, the research below does not apply and should be redone.

Part 1 — Civil RICO, explained

What it is

RICO was enacted in 1970 primarily as an organized-crime prosecution tool, but Congress also created a private civil cause of action in 18 U.S.C. § 1964(c): “Any person injured in his business or property by reason of a violation of section 1962 of this chapter may sue therefor in any appropriate United States district court.”¹⁸

Elements a civil RICO plaintiff must plead

1. **An “enterprise”** — an individual, partnership, corporation, association, or other legal entity, or a group of individuals associated in fact (even if not a legal entity).¹⁹
2. **A “pattern of racketeering activity”** — at least two acts of “racketeering activity” (a defined list of federal and state crimes, including mail fraud, wire fraud, bribery, extortion, money laundering, and dozens of others) within a 10-year period, that are related and amount to or pose a threat of continued criminal activity (“relatedness” and “continuity”).²⁰
3. **Conduct** of the enterprise’s affairs **through** that pattern (§ 1962(c)), or investment of racketeering proceeds in an enterprise (§ 1962(a)), or acquisition/maintenance of an interest in an enterprise through racketeering (§ 1962(b)), or **conspiracy** to do any of the above (§ 1962(d)).
4. **Injury to business or property** proximately caused by the RICO violation (not personal injury, and not a purely derivative injury) — this proximate-cause requirement, from *Holmes v. Securities Investor Protection Corp.* (1992) and *Anza v. Ideal Steel Supply Corp.* (2006), is one of the most common grounds for dismissal of civil RICO complaints.²¹

gov.uscourts.mad.305406.1.0.pdf) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

¹⁶CourtListener opinion search for “DNC Services Corporation”, queried via <https://www.courtlistener.com/api/rest/v4/search/?q=%22DNC+Services+Corporation%22&format=json>, returned 20 matches confirming this is the DNC’s long-used formal corporate name, e.g. *Wilson v. DNC Services Corporation*, No. 1:17-cv-00730 (D.D.C.): <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/>

¹⁷CourtListener searches for “DNC Services, Inc”, “DNC Services Corporation”, and “DNC Services Corporation” “Washington” racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for “DNC Services Corporation” + “Washington” was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for “DNC Services” RICO Washington and “Democratic National Committee” racketeering lawsuit 2026 returned no matching results.

¹⁸18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

¹⁹18 U.S.C. § 1961(4) (“enterprise” definition); § 1961(5) (“pattern of racketeering activity,” minimum two acts within ten years); *H.J. Inc. v. Northwestern Bell Telephone Co.*, 492 U.S. 229 (1989) (relatedness-plus-continuity test for “pattern”).

²⁰18 U.S.C. § 1961(4) (“enterprise” definition); § 1961(5) (“pattern of racketeering activity,” minimum two acts within ten years); *H.J. Inc. v. Northwestern Bell Telephone Co.*, 492 U.S. 229 (1989) (relatedness-plus-continuity test for “pattern”).

²¹*Holmes v. Securities Investor Protection Corp.*, 503 U.S. 258 (1992) (proximate cause requirement for civil RICO standing); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006) (reaffirming direct-injury/proximate-cause requirement, rejecting derivative-injury RICO theories).

Remedies

Treble (3x) actual damages, plus costs and reasonable attorney’s fees — a substantial fee-shifting incentive that (along with contingency-fee practice) is what makes civil RICO attractive to plaintiffs’ counsel in commercial disputes, even where the underlying conduct looks more like ordinary fraud or breach of contract.²²

Statute of limitations

Four years, borrowed by the courts from the Clayton Act, running from when the plaintiff knew or should have known of the injury (discovery rule), subject to circuit splits on the “separate accrual” question for later injuries from the same pattern.²³

Why courts are skeptical of civil RICO claims

Because of the treble-damages/fee-shifting exposure and the stigma of being labeled a “racketeer,” federal courts apply RICO’s elements strictly and dismiss a large share of civil RICO complaints at the pleading stage, especially where the “pattern” element collapses into what is really a single fraudulent scheme or an ordinary commercial dispute dressed up in RICO language.²⁴ Many federal districts also have local rules requiring a detailed “RICO case statement” before discovery can proceed.

²² 18 U.S.C. § 1964(c) (civil RICO private right of action, treble damages and attorney’s fees); 18 U.S.C. §§ 1961–1963 (definitions and criminal provisions incorporated by reference).

²³ *Rotella v. Wood*, 528 U.S. 549 (2000) (civil RICO borrows the Clayton Act’s four-year limitations period; discovery-of-injury accrual rule).

²⁴ *Holmes v. Securities Investor Protection Corp.*, 503 U.S. 258 (1992) (proximate cause requirement for civil RICO standing); *Anza v. Ideal Steel Supply Corp.*, 547 U.S. 451 (2006) (reaffirming direct-injury/proximate-cause requirement, rejecting derivative-injury RICO theories).

Part 2 — Qui tam (False Claims Act) suits, compared

	Civil RICO	Qui tam (False Claims Act)
Who is protected	The plaintiff's own business or property	The federal (or a state) treasury
Who sues	The injured private party, in their own name and interest	A private "relator," nominally <i>on behalf of the United States</i> (case caption is <i>U.S. ex rel. [Name] v. [Defendant]</i>)
Government's role	None — purely private litigation	Complaint is filed under seal; DOJ investigates and decides whether to intervene (take over the case) or decline (relator can proceed alone) ²⁵
What triggers liability	A pattern of at least two predicate crimes from RICO's list, through an enterprise	Knowingly submitting (or causing submission of) a false or fraudulent claim for payment to the government, or making a false record/statement material to such a claim ²⁶
Damages	Treble actual damages to the injured plaintiff	Treble damages to the government, plus per-claim civil penalties; relator receives 15–25% of recovery if the government intervenes, 25–30% if it doesn't ²⁷
Retaliation protection	None built into the statute itself	Explicit anti-retaliation provision, 31 U.S.C. § 3730(h), letting whistleblower-employees sue for reinstatement/back pay
Typical fact pattern	Business competitors, fraud schemes, organized-crime-adjacent commercial disputes	Government contractors/grantees/healthcare providers overbilling or misrepresenting compliance to get paid by federal programs

Overlap in practice: the same underlying conduct — e.g., a scheme by a government contractor to defraud a federal agency — can sometimes support *both* a qui tam FCA claim (because the defendant billed the government falsely) *and* a civil RICO claim (because mail fraud/wire fraud used to execute that billing scheme

²⁵ 31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator's share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

²⁶ 31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator's share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

²⁷ 31 U.S.C. §§ 3729–3733 (False Claims Act); § 3730(b) (qui tam filing under seal, government election to intervene); § 3730(d) (relator's share, 15–25% with intervention / 25–30% without); § 3730(h) (anti-retaliation).

count as RICO predicate acts), which is why sophisticated plaintiffs sometimes plead them together. They remain legally distinct causes of action with different plaintiffs-in-interest, different procedural postures (qui tam is filed under seal; RICO is not), and different recovery mechanics.

Many states, including **Washington**, have their own analogous state false claims statutes (Washington's is limited — it lacks a general state FCA outside Medicaid — see “Unverified items” for why this matters to the original question).²⁸

Part 3 — The 2026 USPS election-mail litigation

Case identity (confirmed)

- **Caption:** *State of California v. United States Postal Service*
- **Court / docket:** U.S. District Court, District of Massachusetts, No. 1:26-cv-13917²⁹
- **Filed:** August 26, 2026
- **Judge:** Indira Talwani (referred to Magistrate Judge M. Page Kelley)³⁰
- **Nature of suit (docket code):** “441 Civil Rights: Voting”³¹
- **Cause of action (docket code):** “28:2201 Constitutionality of State Statute(s)” (Declaratory Judgment Act vehicle)³²

Parties (confirmed from docket metadata)

Plaintiffs include roughly two dozen states and the District of Columbia — California, **Washington**, Massachusetts, New York, New Jersey, Illinois, Michigan, Minnesota, Colorado, Oregon, Arizona, Nevada, Hawaii, Maryland, Vermont, Rhode Island, Delaware, Connecticut, Maine, New Mexico, Wisconsin — plus the City of Madison, Wisconsin, Travis County, Texas, and the League of United Latin American Citizens.³³ Interestingly, some traditionally red states (South Dakota, Indiana, Oklahoma, Missouri, Alabama, Louisiana, Montana, Kansas, South Carolina, Nebraska, North Carolina, Florida) also appear in the party list, which given the docket's size and an “Order on Motion to Intervene” entry, most likely reflects a mix of plaintiff states and

²⁸General background on state false-claims-act variation; Washington's principal state-level false-claims statute is the Medicaid Fraud False Claims Act (RCW 74.66), which is narrower in scope than the federal FCA — this is general legal background, not independently re-verified against current RCW text in this research pass.

²⁹CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

³⁰CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

³¹Same CourtListener query as [^4]; suitNature field returned “441 Civil Rights: Voting”; cause field returned “28:2201 Constitutionality of State Statute(s)”. No RICO-specific nature-of-suit code (which would read “470 RICO”) was present in the retrieved metadata.

³²CourtListener RECAP search, docket metadata for *State of California v. United States Postal Service*, D. Mass., docket ID 74701505, docket number 1:26-cv-13917, filed 2026-08-26, Judge Indira Talwani: <https://www.courtlistener.com/docket/74701505/state-of-california-v-united-states-postal-service/> (metadata retrieved via <https://www.courtlistener.com/api/rest/v4/search/?q=California%20v.%20United%20States%20Postal%20Service&type=r&format=json>).

³³CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

separately-represented intervenors rather than a single unified plaintiff coalition — this distinction was not resolved from the metadata alone and would require reading the actual complaint and intervention motions.³⁴

Named individual/defendant-side parties include USPS itself, and individuals who appear to be current or former USPS Governors/executives: Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, and Derek Kan.³⁵

Intervenor-type entities appearing in the docket include America First Legal Foundation (listed among the firms/attorneys of record), National Security Leaders for America, Secure Families Initiative, Society for the Rule of Law, and the Arizona Students' Association — consistent with a politically contested case attracting outside advocacy-group intervention on one or both sides.³⁶

What the case is about (confirmed from the complaint)

The case challenges **Executive Order No. 14399** (issued March 31, 2026) and the USPS rule implementing it, *Ballot Mail for Federal Elections*, 91 Fed. Reg. 54,966 (Aug. 26, 2026). The rule requires states to enroll every mail voter in a new USPS-run “Federal Ballot Mail Portal,” mandates USPS-approved envelope designs bearing a unique Intelligent Mail barcode (IMb) on both outbound and return ballots, and directs USPS to refuse delivery of noncompliant ballot mail. Plaintiff states allege this unconstitutionally federalizes control over mail voting weeks before the 2026 midterms.³⁷ (Superseding the earlier inference-only description below, which was based on docket metadata alone before the complaint text was retrieved.)

Full complaint now reviewed — seven causes of action, no RICO/qui tam/DNC

The actual 53-page complaint (Document 1, filed 2026-08-26) was retrieved and read in full.³⁸ It pleads exactly **seven causes of action**, all against USPS and the six named Board of Governors officials, **none of them RICO, False Claims Act, or naming the DNC in any capacity**:

1. **Separation of Powers / Elections & Electors Clauses / Commandeering / Ultra Vires** — the Rule usurps States' constitutional authority over election “manner,” commandeers state resources (*Printz v. United States*), and exceeds USPS's Article I, § 8, cl. 7 postal authority.
2. **APA — contrary to statute / arbitrary and capricious** — treating ballot mail as de facto “nonmailable matter” outside the narrow categories Congress defined in 39 U.S.C. §§ 3001–3018; failure to consider

³⁴CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

³⁵CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

³⁶CourtListener RECAP search, party list for docket ID 74701505, retrieved via https://www.courtlistener.com/api/rest/v4/search/?q=docket_id%3A74701505&type=r&format=json (party array includes State of Washington, State of California, and named USPS-affiliated individuals Doug Tulino, David Steiner, Ronald Stroman, Amber McReynolds, Daniel Tangherlini, Derek Kan).

³⁷Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

³⁸Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

reliance interests (*Regents* standard); effective date set without the 30-day notice required by 5 U.S.C. § 553(d).

3. **Ultra vires — unauthorized non-postal service** — creating the mail voter enrollment/monitoring scheme exceeds USPS’s 39 U.S.C. § 404(e) authority to provide only services that existed pre-2006 or under a qualifying interagency agreement.
4. **Ultra vires — failure to seek a Postal Regulatory Commission advisory opinion** under 39 U.S.C. § 3661(b) before a nationwide service change; a PRC complaint was filed June 11, 2026 and never acted on.
5. **Ultra vires — undue/unreasonable discrimination among mail users** under 39 U.S.C. § 403(c) — identical ballots treated differently based on whether a voter appears on USPS’s list.
6. **Voting Rights Act** — 52 U.S.C. §§ 10307(a), 10502 — USPS’s refusal to deliver noncompliant ballots is alleged to deny qualified voters the right to vote “under color of law.”
7. **Privacy Act** — 5 U.S.C. § 552a(e)(1) & (e)(7) — the System of Records Notice’s collection of voter/mail-ballot data is alleged to exceed what is “relevant and necessary” and to improperly record First Amendment activity (choice to register/vote by mail).

Relief sought is purely declaratory/injunctive (vacate the Rule, enjoin enforcement) plus fees/costs under the APA and Declaratory Judgment Act — **no damages, no treble damages, no whistleblower bounty**. This confirms, rather than merely infers, that the case has no RICO or qui tam dimension and does not involve the DNC.³⁹

The complaint also reveals this filing sits inside a **larger, pre-existing litigation campaign** over the same executive order: it repeatedly cites *California v. Trump*, No. 1:26-cv-11581 (D. Mass.) and *League of Women Voters of Massachusetts v. Trump*, No. 1:26-cv-11549 (D. Mass.), both of which had already enjoined related USPS rulemaking before this complaint was filed — footnote 26 of the complaint alleges USPS submitted this Rule for public inspection *while already enjoined* from doing so.⁴⁰ Anyone researching this matter further should pull those two dockets as well.

Part 4 — Operational/technical claims suited for subject-matter review

The user has indicated relevant background (Y2K-era IT consulting for the U.S. Postal Inspection Service) that may bear on evaluating the *technical and operational* claims in the complaint — as distinct from its legal theories, which are for counsel. The following paragraph-cited claims are the ones most likely to turn on operational/systems facts rather than pure law, listed here for independent evaluation rather than asserted as true or false by this report:

³⁹Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

⁴⁰Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

#	Complaint's claim	Citation
1	The “Federal Ballot Mail Portal” required by the Rule “does not currently exist,” and commenters called rolling out “untested technology” to manage “tens of millions of entries” in a compressed timeframe “fraught with risk.”	¶108
2	State/local election officials — not USPS — are made responsible for generating the unique Intelligent Mail barcode (IMb), with the “Delivery Point Zip Code embedded and a Federal Ballot Mail STID,” for each outbound and return ballot envelope.	¶105, ¶123 (citing 91 Fed. Reg. 54,966, 54,990)
3	USPS’s own stated per-mailpiece verification estimate (“less than a minute per mailpiece,” “no more than a few hours for larger mailings”) is characterized by plaintiffs as implying ~23 million minutes (~43 years) of aggregate processing time for California alone, with election officials required to remain on-site at the USPS counter throughout.	¶134 (citing 91 Fed. Reg. 54,966, 54,981)
4	USPS commits to envelope-design feedback “within two business days” but the complaint says this doesn’t account for “more than 10,000 election jurisdictions,” each often designing its own envelopes.	¶134
5	The verification/rejection process is alleged to apply asymmetrically — to outbound ballot mail but explicitly not to return ballot mail.	¶121 (citing DMM 705.24.5.4)
6	No stated mechanism exists to distinguish ballots for statutorily exempted groups (overseas citizens, active-duty military, merchant marine under UOCAVA)	¶107
8	Noter suggests that voters can simply late (or not) drop their ballots (or not) if the data is a part of a federal data law enforcement effort. The Rule shapes, in making the elec-	¶115–¶117 (citing 91 Fed. Reg. 44,880–81)

These are presented as a checklist of *plaintiffs’ factual allegations* about USPS system design and capacity — not independently verified against the Federal Register rule text itself in this pass (only the complaint’s characterization of it was reviewed). If useful for Mr. Kirk, the next step would be to pull the actual Federal Register rule (91 Fed. Reg. 54,966) and the NPRM (91 Fed. Reg. 32,915) directly and compare their text against the complaint’s characterizations side by side.

Part 5 — User-supplied factual basis (unverified, stated directly by the user)

In response to a request for the underlying injury, the user provided the following, quoted here as close to verbatim as practical so nothing is lost or paraphrased into a different meaning. **None of the specific factual claims below have been independently verified by this research** (no name, date, filing, or document has been supplied yet to check against public records):

“Underlying injury includes: dilution of votes, and against me in particular, attempts to prevent my business, DOGEtech.co, to achieve needed success. I have been working for 2+ years on work including research into FEC violations by democratic candidates.”

Breaking this into its three component claims, and flagging the threshold legal-fit question each one raises for counsel (not answered here — these are exactly the kind of judgment calls that belong to Mr. Kirk, not to this report):

1. **Vote dilution (general).** Vote-dilution claims are typically brought as constitutional claims (Fourteenth Amendment equal protection, or the Voting Rights Act — the same theories actually pled in *California v. USPS*, see Part 3) by voters or jurisdictions, not as civil RICO claims. Civil RICO’s injury requirement is specifically “business or property” injury (18 U.S.C. § 1964(c)) — courts have generally held that a generalized grievance about the integrity or weight of one’s vote, without more, is not a “business or property” injury RICO recognizes. **Question for counsel:** is there a specific, personal, pleadable business-or-property harm flowing from the alleged vote dilution, distinct from the general public-policy harm already pled by the states in *California v. USPS*?
2. **Alleged interference with DOGEtech.co.** This is the piece most naturally framed as a “business or property” injury under civil RICO — *if* it can be tied to specific predicate acts (e.g., mail fraud, wire fraud, extortion — the defined list in 18 U.S.C. § 1961(1)) committed by an identifiable “enterprise,” and if proximate cause (not merely “but-for” cause) can be shown per *Holmes* and *Anza* (see Part 1). **Still needed, not yet supplied:** what DOGEtech.co is/does, who specifically is alleged to have acted against it, what actions they took, when, and how those actions connect factually to the alleged predicate acts. No public reporting connecting a business called “DOGEtech.co” to this matter was located in this research pass (a targeted search was not run in this update; can be added on request if a specific incident, date, or counterparty is identified).
3. **Two years of independent research into FEC violations by Democratic candidates.** This is described as the user’s own investigative work, not itself an injury. Two open legal-fit questions for counsel: (a) FEC (Federal Election Campaign Act, 52 U.S.C. § 30101 et seq.) violations are enforced by the FEC administratively and, for willful/knowing violations, by DOJ criminally (52 U.S.C. § 30109) — they are not, generally, a False Claims Act (qui tam) predicate, since qui tam requires a false claim *for payment from the government*, which campaign-finance reporting violations typically are not; (b) if the theory is instead that the user was *retaliated against* (e.g., via harm to DOGEtech.co) *because of* this research, that reframes the claim as

a retaliation/interference theory requiring its own proximate-cause and “enterprise” showing under RICO — a materially different and more demanding theory than a qui tam claim, and one that would need its own specific facts (who knew about the research, what they did in response, when).

Net effect: the user has now supplied a *subject* (DOGEtech.co) and a *theme* (vote dilution + FEC research), but not yet the specific facts — who, what, when, and a traceable causal chain — that civil RICO pleading requires. This section records the user’s statement for the record and for Mr. Kirk’s direct review; it does not attempt to independently corroborate it, and it should not be read as this report endorsing any of the three theories above as legally viable.

Part 3a — The DNC’s corporate name, and why it matters here

The Democratic National Committee’s day-to-day legal and financial affairs are conducted under a formally incorporated entity, historically named “**DNC Services Corporation**” (sometimes styled “DNC Services Corporation/Democratic National Committee”). This is not a fringe or obscure detail — it is the named defendant/party in numerous federal lawsuits over multiple decades, including 2016-primary-era litigation over DNC conduct during the Democratic presidential primary (*Wilson v. DNC Services Corporation*, D.D.C. No. 1:17-cv-00730) and earlier campaign-finance matters.⁴¹

Two things follow for this research question:

1. If a current racketeering complaint names the DNC, the caption would most likely read “DNC Services Corporation,” not “DNC Services, Inc.” — worth checking if you go back to the source of your recollection.
 2. Despite confirming the DNC’s correct corporate name, **no public record was found linking DNC Services Corporation to a RICO complaint involving Washington state executives**, whether connected to *California v. USPS* or as a standalone matter.⁴² If you have a docket number, court name, or filing date for the complaint you have in mind, that would let this report be corrected with a direct citation rather than a “not found.”
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Part 6 — Washington’s state ethics law: RCW ch. 42.52 (“Ethics in Public Service”)

The user noted that Washington statutory law restricts public officials from using their office for personal gain, including partisan advantage. This is confirmed, and comes from a specific statutory chapter, quoted here directly from the official Washington State Legislature site rather than summarized from memory:⁴³

⁴¹CourtListener opinion search for “DNC Services Corporation”, queried via <https://www.courtlistener.com/api/rest/v4/search/?q=%22DNC+Services+Corporation%22&format=json>, returned 20 matches confirming this is the DNC’s long-used formal corporate name, e.g. *Wilson v. DNC Services Corporation*, No. 1:17-cv-00730 (D.D.C.): <https://www.courtlistener.com/opinion/4665158/wilson-v-dnc-services-corporation/>

⁴²CourtListener searches for “DNC Services, Inc”, “DNC Services Corporation”, and “DNC Services Corporation” “Washington” racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for “DNC Services Corporation” + “Washington” was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for “DNC Services” RICO Washington and “Democratic National Committee” racketeering lawsuit 2026 returned no matching results.

⁴³Washington Revised Code of Washington (RCW) ch. 42.52, “Ethics in Public Service,” retrieved directly from the Washington State Legislature’s official site: RCW 42.52.010 (definitions, including “state officer”/“state employee”), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.010>; RCW 42.52.020 (conflicts of interest), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.020>; RCW 42.52.070 (special privileges), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.070>; RCW 42.52.180 (use of public facilities for

- **RCW 42.52.020 — Conflicts of interest (general).** “No state officer or state employee may have an interest, financial or otherwise, direct or indirect, or engage in a business or transaction or professional activity, or incur an obligation of any nature, that is in conflict with the proper discharge of the state officer’s or state employee’s official duties.”
- **RCW 42.52.070 — Special privileges.** “Except as required to perform duties within the scope of employment, no state officer or state employee may use his or her position to secure special privileges or exemptions for himself or herself, or his or her spouse, child, parents, or other persons.” This is the closest statutory match to “personal gain” in the narrow sense of self-dealing.
- **RCW 42.52.180 — Use of public facilities for political campaigns.** “No state officer or state employee may use or authorize the use of facilities of an agency, directly or indirectly, for the purpose of assisting a campaign for election of a person to an office or for the promotion of or opposition to a ballot proposition.” “Facilities of an agency” is defined broadly (stationery, postage, machines and equipment, state employees during working hours, vehicles, office space, publications, clientele lists). This is the statute most directly on point for “partisan advantage.” It carries several enumerated exceptions (subsection (2)) for ordinary official communications, open-meeting votes, legislative websites, and de minimis incidental use — the exceptions matter, since a large share of ethics-complaint litigation turns on whether particular conduct falls inside or outside them.

Enforcement mechanism (important limitation for any countersuit theory). This chapter is enforced administratively, not through a private civil damages action. RCW 42.52.360 assigns enforcement to the **Executive Ethics Board** (for executive-branch officers/employees) and the equivalent Legislative Ethics Board / Commission on Judicial Conduct for their respective branches; the Executive Ethics Board “investigate[s], hear[s], and determine[s] complaints by any person or on its own motion” and may “impose sanctions including reprimands and monetary penalties.”⁴⁴ **Any Washington citizen may file a complaint with the relevant ethics board**, but this chapter, standing alone, does not create a private right of action for a citizen to sue a state officer directly for damages — it is a complaint-and-administrative-sanction regime, not a RICO-style treble-damages tort.

Threshold applicability questions for counsel, given the facts discussed elsewhere in this report:

1. **Coverage.** RCW 42.52 applies to Washington *state* officers and employees (see the “state officer”/“state employee” definitions in RCW 42.52.010). It does not, by its terms, reach *federal* officials — so it would not apply directly to the named USPS Governors/executives in *California v. USPS* (Part 3), who are federal appointees, not Washington state officers. It would potentially reach Washington state-government figures specifically (e.g., a Washington state executive-branch official, if one is alleged to have used state office resources for partisan advantage) — which is the same “Washington state executives” thread flagged as unresolved elsewhere in this report (see Part 3a and “Unverified items” below).
2. **Relationship to a civil RICO/qui tam theory.** A RCW 42.52 violation is not, by itself, one of civil RICO’s listed predicate acts (18 U.S.C. § 1961(1) — see Part 1), nor is it a False Claims Act violation (Part 2). It could conceivably supply *supporting* factual context (e.g., evidence of motive or an improper “enterprise”

political campaigns), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.180>; RCW 42.52.360 (enforcement by the executive ethics board, including complaints “by any person”), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.360>. All retrieved 2026-09-30.

⁴⁴Washington Revised Code of Washington (RCW) ch. 42.52, “Ethics in Public Service,” retrieved directly from the Washington State Legislature’s official site: RCW 42.52.010 (definitions, including “state officer”/“state employee”), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.010>; RCW 42.52.020 (conflicts of interest), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.020>; RCW 42.52.070 (special privileges), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.070>; RCW 42.52.180 (use of public facilities for political campaigns), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.180>; RCW 42.52.360 (enforcement by the executive ethics board, including complaints “by any person”), <https://app.leg.wa.gov/rcw/default.aspx?cite=42.52.360>. All retrieved 2026-09-30.

relationship) if the same underlying conduct also independently satisfies a RICO predicate (such as extortion or bribery under generically-defined state-law crimes RICO incorporates), but an ethics-code violation alone is a distinct, administrative claim with its own forum (the ethics boards) and would not itself be pled as a RICO count.

3. **Still needed, not yet supplied:** which specific Washington state officer(s) or employee(s), which specific facility/resource use, and when — none of which has been identified yet in this research.

Unverified items — do not treat as fact

1. **“DNC Services, Inc.” / DNC Services Corporation tied to a RICO complaint** — no matches connecting the DNC (under either the user’s “DNC Services, Inc.” phrasing or the DNC’s actual corporate name, “DNC Services Corporation”) to a racketeering complaint involving Washington state executives, in either CourtListener’s RECAP/opinion full-text search or Google News.⁴⁵ Possible explanations, none confirmed:
 - It may be a filing in a Washington state trial court (not indexed by CourtListener/PACER, which primarily cover federal courts).
 - It may be very recent (published after this research pass, or not yet picked up by Google News’ index).
 - The DNC’s name/role may have been recalled imprecisely relative to the actual complaint (e.g., a state party committee, a related PAC, or a specific individual rather than the national DNC entity).
2. **“Washington state executives”** as RICO defendants — not confirmed independently of the USPS case’s Washington AG involvement as a *plaintiff* (not defendant) in *California v. USPS*. If the user meant Washington state executive-branch officials as **defendants** in a *separate* racketeering complaint (possibly naming the DNC as a co-defendant), that complaint was not located.
3. **Whether the *California v. USPS* case includes any RICO count, or names the DNC as a party — resolved:** it does not. The full complaint was read in this pass; it pleads seven non-RICO causes of action and does not mention the DNC, RICO, qui tam, or the False Claims Act anywhere in its 53 pages.⁴⁶

Recommended next steps

1. Search the **Washington State Courts case index** (not covered by CourtListener) and Washington-specific news outlets for a RICO complaint naming the DNC and Washington state executive-branch officials, since state-level filings are outside the national tools used in this pass — this is now the main open thread, since *California v. USPS* itself has been ruled out as the source of any RICO/DNC connection.
2. If a specific complaint/case number for the DNC-related RICO claim can be supplied by the user, re-run a targeted CourtListener docket lookup by case number rather than by name search.
3. If the goal is evaluating *California v. USPS* on the merits (per the user’s stated USPS Inspection Service background), pull the companion dockets *California v. Trump* (1:26-cv-11581, D. Mass.) and *League of Women Voters of Massachusetts v. Trump* (1:26-cv-11549, D. Mass.), both cited repeatedly in this complaint as

⁴⁵CourtListener searches for “DNC Services, Inc”, “DNC Services Corporation”, and “DNC Services Corporation” “Washington” racketeering (via <https://www.courtlistener.com/api/rest/v4/search/?q=...&format=json>) returned no results tying the DNC to a Washington-state racketeering complaint; the one racketeering-adjacent hit for “DNC Services Corporation” + “Washington” was the unrelated 2004 campaign-finance case *Meng v. Schwartz*, 305 F. Supp. 2d 49 (D.D.C. 2004). Google News RSS searches for “DNC Services” RICO Washington and “Democratic National Committee” racketeering lawsuit 2026 returned no matching results.

⁴⁶Complaint, *State of California v. United States Postal Service*, No. 1:26-cv-13917 (D. Mass. filed Aug. 26, 2026), Document 1, 53 pages, retrieved via CourtListener RECAP storage (<https://storage.courtlistener.com/recap/gov.uscourts.mad.305406/gov.uscourts.mad.305406.1.0.pdf>) and read in full (text-extracted with pypdf). Full-text search of the extracted document for “DNC,” “Democratic National Committee,” “RICO,” “racketeer,” “qui tam,” and “False Claims” returned zero matches.

having already enjoined related USPS rulemaking, plus the Federal Register rule itself (91 Fed. Reg. 54,966) and NPRM (91 Fed. Reg. 32,915), to verify the complaint's characterizations against the primary sources.

Footnotes